25th July, 2022

Himaank Goyal
+91- 7597548730

Dear Himaank,

We are pleased to appoint you as **System Administrator,** or in such other capacity as the management of Aptus Software Labs Pvt. Ltd., hereinafter called the Company, shall from time to time determine, under the following terms and conditions:

1. **Date of Appointment:**

Your date of appointment is effective from the date of joining.

2. **Code of Conduct:**

2.1. The Company may require you, at any time, to perform any other administrative, managerial, supervisory, technical or other functions and you will be bound to carry out such functions.

2.2. Your individual remuneration is purely a matter between yourself and the Company and has been arrived at on the basis of your job, skills, specific background and professional merit. Accordingly your salary and any changes made to it are strictly confidential; you shall treat such matters accordingly, and any breach thereof would be viewed very seriously.

2.3. You shall maintain proper discipline and dignity of your office and shall deal with all matters with sobriety.

2.4. You shall maintain and keep in your safe custody such books, registers, documents and other papers as may be issued to you or may come in your possession and shall return the same when required.

2.5. You shall inform the Company of any changes in your personal data within 3 days of the occurrence of such change. Any notice required to be given to you shall be deemed to have been duly and properly given if delivered to you personally or sent by post to you at your address in India, as recorded in the Company.

2.6. You will observe work timings and holidays as applicable to your location and place of work.

2.7. You shall be solely responsible for any issues that may arise between you and your previous employer with regard to your previous employment and the Company is not responsible for the same.

2.8. You also assure not to, directly or indirectly, in any capacity or manner, make, express, transmit, speak, write, verbalize or otherwise communicate in any way (or cause, further, assist, solicit, encourage, support or participate in any of the foregoing), any remark , comment, message, information, declaration, communication or other statement of any kind, whether verbal, in writing, electronically transferred or otherwise except as required by law, that might reasonably be construed to be derogatory or critical of, or negative toward, the Company or any of its directors, officers, Affiliates, subsidiaries, employees, agents or representatives (collectively, the "Company Representatives") and which malign, harm, disparage, defame or damage the reputation or good name of the Company, its business or any of the Company Representatives.

3. **Probationary Period:**

Initially you will be on probation for a period of **3** months from the date of your joining. On successful completion of the probation period, if, in the opinion of the Company, you are found suitable in the appointed post, you will be confirmed in writing by the Company, at which time the terms and conditions of this letter shall continue to bind you, as may be amended by the Company from time to time. Based on your performance, the Company is at liberty to terminate your services, if found unsatisfactory at any time during the probation period, or extend the probation period, as it deems necessary. Failure to successfully complete the Probationary Period or the extended Probationary Period, as the case maybe, may result in termination of employment which shall be communicated to you by the Company in writing. The decision of the Company shall be final and binding.

4. **Salary:**

4.1. During the period of probation you will be entitled to salary and perquisites as detailed in the annexure. The Company in writing will communicate any change in compensation to you.

4.2. Compensation structure is based on location and any change in compensation arising out of a change in location will be communicated to you in writing.

5. **Initial Appointment and Subsequent Transfers:**

Your initial appointment will be at **Bangalore.** You will be liable to transfer in such capacity as the Company may from time to time determine to any other location, departments, establishment, factory or branch of the Company or subsidiary, associate or

affiliate of the Company in India or abroad without claiming any extra remuneration for such transfers.

6. **Leave:**

You will be entitled to leave and other benefits in accordance with the rules of the Company.

7. **Other Work:**

Your position is a full time employment with the Company and you shall devote your whole time and attention to the Company's business entrusted to you. You will not take up any other work for remuneration (part-time or otherwise) or work in advisory capacity or be interested directly or indirectly (except as shareholder or debenture holder) in any other trade or business during the employment with the Company without the prior written permission of the Chief Executive Officer of the Company.

8. **Training:**

Company paid specialized training will be provided if the company deems such training is necessary for the job. In consideration of the Training, you shall serve the Company at any particular time as determined by the Company for a period (hereinafter referred to as "the Compulsory Service Period") commencing the date you report for duty with the Company , failing which the Company may recover from you a sum equivalent to the training costs incurred by the Company.

9. **Termination:**

9.1. During the period of probation, your services shall be terminable by giving one month’s notice or one month's basic pay in lieu thereof on either side at the sole discretion of Aptus Software Labs Pvt. Ltd. management. On confirmation of your services in the Company, your services shall be terminable by giving one month’s notice or three months basic pay in lieu thereof on either side at the sole discretion of Aptus Software Labs Pvt. Ltd. Management.

9.2. In the event that you want to terminate your employment with the Company, while on a customer’s project at India or abroad you be will required to give a minimum of 90 days notice, to enable smooth transition and transfer of technology. The actual date of release will be mutually decided with the consent of the concerned client and your superior and the said date of release shall not be unreasonably withheld provided you are able to handover charge satisfactorily within the 90 day period.

This minimum notice of 90 days cannot be adjusted with payment in lieu of notice period as mentioned in clause 8 above or adjusted against the Privilege Leave.

9.3. You will be liable to termination from service by the Company without notice if:

a. Any declaration given by you or testimonials furnished by you to the Company proves to be false, or,

b. You are found to have willfully suppressed any material information, or,

c. You are found to have been convicted for or indulged in criminal, subversive or immoral activities, or,

d. You are found to have indulged in financial irregularities; or

e. You breached any of the terms and conditions of your employment as specified in this letter, or any further official communication from the Company.

f. Failure to furnish relieving/service certificate from the previous employer or any other documentary proof to substantiate your transition from the previous employers to the reasonable satisfaction of the Company.

g. Your performance has been found to be below par and no improvements has been shown by you after sufficient time has been provided to you for remediation. Sufficient time will be solely determined by Aptus Software Labs based on the nature of the project.

10. **On Separation:**

On communication of the termination/resignation of your employment with the Company, you will immediately give up to the Company before you are relieved, all documents of the Company including correspondences, specifications, formulae, books, documents, cost data, market data, literature, drawings, effects, and shall not make or retain any copies of these items.

11. **Intellectual Property and Confidential Information:**

11.1. Information pertaining to the Company's operations and its clients shall remain secret and safeguarded by you. You shall not disclose, part with possession or remove now or at any time, in future, whether during your employment or thereafter at any time, to any person or persons (except to those authorized by the Company) or use for your own purpose or for any purpose other than those for the

Company, any private, confidential or secret information, trade secrets, manufacturing process, know-how, manuals, product price lists, product CDs', writings, records, notes, letters, drawings, plans, customer database or any other data belonging to the Company, which you may have obtained or come across by virtue of your employment with the Company or whether the Company is bound by an obligation of confidentiality or secrecy or not, to a third party or otherwise whosoever.

11.2. The Intellectual Property or Patents developed by you during your service will be the property of the Company. You will also keep us duly informed if you are bound by any confidentiality agreement with any of your previous employers, in which case you shall keep us indemnified against any breach thereof by you. Similarly, after leaving the services of the Company, you shall keep confidential any proprietary information and technologies, which you were involved with during your service with the Company and shall render yourself liable to damages and costs arising out of breach of such confidentiality.

11.3. You shall irrevocably, unconditionally and free of any cost, royalty or compensation, assign to the Company all rights, title and interests including the transfer rights and Intellectual Property Rights in all products, designs, software, all embedded, intermediary, base software technology which is created or developed by you during the course of your employment in the Company. The Company shall have the right to obtain and hold in its own name, copyrights, trade-marks and other applicable registrations and seek such other protection as
may be appropriate to the work, product and all designs, software created by you and you shall also provide the Company or any person designated by the Company all assistance as may be required to establish and / or perfect the rights defined in this clause. You shall have no right, title or interest in such IPRs.

12. **Protection of Interest:**

If you conceive any new or advanced methods of improving process / formulae / systems in relation to the operations of the Company, such development will be fully communicated to the Company and will be and remain sole right / property of the Company.

13. **Client Management:**

On Termination / Resignation of employment for what-so-ever reasons, you will not seek employment opportunities with our principals, customers and any other person / entity, with whom you had a business relationship / technical engagement within one year from your last working day in the Company. In the event the Company is of the reasonable opinion that you are terminating your employment with the Company to pursue an

occupation in violation of this Clause 10, then the Company reserves the right to, at its sole discretion, refuse to accept any letter of termination, by whatever name called, of your employment with the Company. The Company further reserves the right to approach a Court of competent jurisdiction and obtain an injunction preventing you from terminating your employment with the Company and/or recover damages there from.

14. **Non-solicitation:**

14.1. During the period of employment and for a period of two years following your termination of employment with the Company, irrespective of the circumstances of or reasons of the termination, you will not, directly or indirectly, solicit, hire or employ, or assist anyone else to solicit, hire or employ, any other employee of the Company. At no time you may directly or indirectly seek to induce any other employee of the Company to leave the employment of the Company or to become associated with, or perform services of any type for any third party.

14.2. During the period of employment and for a period of two years following your termination of employment with the Company, irrespective of the circumstances of or reasons of the termination, you will not, directly or indirectly, solicit, induce or encourage any customer or vendor of the Company to move his/her existing business with the Company to a third party or to terminate his/her business relationship with the Company.

15. **Retirement:**

You will retire in the month of your attaining the age of 58 years.

16. Jurisdiction and Dispute Resolution:

Any dispute which may at any time hereafter arise between the parties hereto, shall be referred to a single arbitrator to be appointed by the Company Secretary of Aptus Software Labs Pvt. Ltd. in accordance with and subject to the provisions of the Arbitration and Conciliation Act, 1996. It shall be open to any one of the parties to move the Company Secretary to appoint the arbitrator and refer dispute to arbitration. The decision/award of such an arbitrator shall be binding on the parties hereto. The venue of arbitration shall be Bangalore. The Courts in Bangalore shall have exclusive jurisdiction to the exclusion of all other Courts.

You will be required to produce one set of photocopies and the originals of certificates / testimonials on the day of joining. Photocopies will be retained for our records and originals will be returned to you upon verification.

You are requested to join us on or before **25th July, 2022.**

Please note that you are governed by all Rules and Regulations of the Company, which are in force from time to time, and the Company shall have the right from time to time to vary or modify any of the terms and conditions of service, which shall be binding on you.

The terms of this Letter of Appointment are strictly confidential between you and the Company, and any breach of confidentiality in this regard may result in withdrawal of this Letter of Appointment or termination of your employment.

We take pleasure in welcoming you to our Organization and look forward to a mutually beneficial association.

We wish you all the best in your career.

for **Aptus Software Labs Pvt. Ltd.,**

Declaration

I have read and understood the above terms and conditions of employment and am accepting the same. I will be reporting for duty on or before **25th July, 2022.**

Date: 25th July, 2022

Name: Himaank Goyal

Signature: _____